

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	2025-1455712 Bank Of America, N.A. vs. Sofonio	The motion of Cordoba Legal Group, by Andrew Joseph Gramajo, counsel of record for defendant Rex Sofonio to be relieved as counsel for Defendant is granted. [ROA #28.] The court will fill in the proposed order as to findings and to show that there are no future dates and will sign the amended order. Upon the signing of the amended order, counsel shall serve the signed order on Defendant and all parties that have appeared. Counsel will be relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed amended order upon Defendant and all other parties.
2.	2026-1553859 Bussolini vs. Ma	Adam Kocaj, Esq. of Kocaj Law, P.C.'s motion to be relieved as counsel for Plaintiff Bradley Bussolini is granted. Upon the signing of the order, counsel shall serve said order on all parties who have appeared as well as Mr. Bussolini.

		Adam Kocaj, Esq. of Kocaj Law, P.C. will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the parties. Mr. Kocaj shall give notice of the ruling.
5.	2022-1276938 Uthman vs. Angel Babies Surrogacy & Egg Donation LLC	Plaintiffs David K. Uthman and Wendace C. Witt's Motion to Amend Judgment to Award Attorney's Fees, Prejudgment Interest and Costs is granted in part as set forth below. <u>Prejudgment Interest</u> The Judgment provides that Defendants unlawfully withheld and concealed Plaintiffs' \$67,400. (ROA 139, pg. 2:15.) Plaintiff David K. Uthman was awarded \$267,400 plus interest pursuant to Civil Code § 3288; and Plaintiff Wendace C. Witt was awarded \$200,000, plus interest pursuant to Civil Code § 3288. (Judgment, ROA 139. at pg. 2:17-20.) Civil Code § 3288 provides for awarding prejudgment interest in tort and certain other non-contractual actions. Prejudgment interest pursuant to Civil Code § 3288 is 7 percent per annum. The damages base for the interest calculation consists of the ascertainable, economic losses. (<i>Steinfeld v. Foote-Goldman Proctologic Medical Group, Inc.</i> (1997) 60 Cal.App.4th 13, 21.) Thus, prejudgment interest is calculated using \$67,400 that was taken by Defendants. $\\$67,400 \times 7\% = \\$4,718/\text{yr.}$ Thus, $\\$4,718$ divided by 365 days = $\\$12.93$ prejudgment interest per day. The accrual start date runs from the date of the tortious act proximately causing the plaintiff's damages, or 11/21/19. (See, <i>Newby v. Vroman</i> (1992) 11 Cal.App.4th 283, 289.) Thus, prejudgment interest is calculated from 11/21/19 until the date of Judgment, 3/19/26, which is 2310 days (<i>not</i> 1579 days as claimed by Plaintiffs). $2310 \text{ days} \times \\$12.93/\text{day} = \\$29,868.30$ Accordingly, prejudgment interest in this matter is \$29,868.30. <u>Attorney's Fees</u> A. <u>Entitlement to Fees</u> When authorized by contract, statute or "law," reasonable attorney fees are "allowable costs." (Code Civ. Proc. § 1033.5(a)(10)(A), (B) & (C).) Penal Code Section 496 states: "(c) Any person who has been